

Saroj Agarwal v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 3 December 2025 · Writ-C No. 11114 of 2025 ·
Writ disposed; relegated to statutory appeal, decided in six weeks

HEADNOTE

Writ seeking restoration of supply and quashing of a finalized s.126 assessment and Tehsildar recovery is disposed of: the consumer's remedy is the statutory appeal to the Divisional Commissioner; if filed as prescribed with fees as prescribed by the State Commission under s.82, it shall be decided on merits within six weeks.

FACTUAL SUMMARY

Petitioners paid their last bill of Rs.444 (07.12.2024, Account 0581911111) with no arrears. Supply was disconnected on 30.12.2024. A s.126 notice for Rs.86,945 arrived on 10.01.2025; they objected that the quantum was unexplained and the inspection report was not enclosed. That 30.12.2024 report was supplied only on 31.01.2025; a Clause 6.8 notice followed on 01.03.2025 and Tehsildar recovery on 23.09.2025. The licensee said theft was found, the petitioners failed to appear at the 6.8 hearing, and the assessment was finalized.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

statutory appeal against finalized s.126 assessment

HOLDING

A consumer challenging a finalized s.126 assessment, and the consequential disconnection and Tehsildar recovery, after the opportunity of personal hearing under Supply Code paragraph 6.8, has the statutory appeal to the Divisional Commissioner. If that appeal is filed in the manner prescribed, on payment of fees prescribed by the State Commission under s.82, it shall be decided on merits within six weeks. The writ was disposed of on that footing without examining the legality of the assessment or disconnection. ¶ 2-3

PRINCIPLE TAGS

opportunity-before-final-assessment Writ seeking restoration of supply and quashing of a finalized s.126 assessment and Tehsildar recovery is disposed of: the consumer's remedy is the statutory appeal to the Divisional Commissioner ¶ 2-3

s126-procedural-strictness-notice-and-hearing Writ seeking restoration of supply and quashing of a finalized s.126 assessment and Tehsildar recovery is disposed of: the consumer's remedy is the statutory appeal to the Divisional Commissioner ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISCONNECTION, S.126 ASSESSMENT AND TEHSILDAR RECOVERY WERE ILLEGAL FOR NON-SERVICE OF THE INSPECTION REPORT OR NON-COMPLIANCE WITH CLAUSE 6.8

¶ 2-3

NOT DECIDED — WHETHER ELECTRICITY THEFT WAS ESTABLISHED AND WHETHER SUPPLY SHOULD BE RESTORED

¶ 2-3

